

CHAPTER ONE: INTRODUCTION

1. Meaning of Evidence and law of Evidence

- The word “evidence” is originated from a Latin term “*evidentia*” which means to **show clearly, to make clear to the sight to discover clearly certain, to ascertain or to prove**. Thus, evidence is something, which serves to prove or disprove the existence or non-existence of an alleged fact.
- All facts traditionally considered, as evidence may not be evidence in the eyes of evidence law. Rather, evidence is something presented before the court for the purpose of proving or disproving an issue under question. In other words, evidence is the means of satisfying the court of the truth or untruth of disputed fact between the parties in their pleadings.
- Draft Evidence Rules (DER) defines evidence, as “**a means whereby any alleged matter of fact, the truth of which is submitted to investigation, is proved and includes statements by accused persons, admission, Judicial notice, presumptions of law, and observation by the court in its Judicial capacity**”.
- The law of evidence is the body of legal rules developed and enacted to govern:
 - A. facts that may be considered in court?** This is the issue of relevant evidence that one should adduce before the court to support his allegation.
 1. Facts in issue
 2. Facts relevant to facts in issue
 - B. The methods of securing consideration of these facts** i. Real (e.g. documentary, exhibits) evidence ii. Oral evidence
 - C. Certain facts, which need not be proved**
 - i. Judicial notice- Facts so notorious as to be facts in public knowledge, capable of being verified by authoritative texts
 - ii. Judicial admission (facts admitted in pleadings, at open court, in examination of parties, in testimony etc.)
 - D The party that must secure consideration of what facts:** This is about burden of proof and degree of proof required to win the case.

Nature

1. **Part of adjective law**
2. **Interdisciplinary in nature**
3. **More practical**
4. **Mixed of common and civil law rules**

Evidence in Civil and common law countries

1. Differences regarding the organization of the rule of evidence.

- the common law legal system, have separate rules of evidence or separate code of evidence law. The rules determine what evidence is admissible and what evidence is not admissible.
- While, when we come to the law of evidence in the continental system there is no separate code of evidence law. Rules of evidence are sparsely distributed in both substantive and procedural laws.

2. The difference regarding the system of inquiry

- The common law countries employ the "*Adversarial system*" of evidence gathering. An adversarial trial provides a forum in which two parties present competing version of the truth. This system is a party-lead system in which the judge has no investigative role.
- However, the civil law system employ the "*inquisitorial system*" of inquiry .Here, the court has the task of making inquiry. It question witnesses, directs the police investigation, commissions the service of expert witness and examines all relevant evidences. See article

3. The differences on the types of evidences they emphasized

Under common law legal system, the greatest weight and importance is attached to oral testimony of the parties and their respective witnesses. Here, there is clear preference for evidence to be tendered in oral form. Documentary evidence is generally regarded as being inferior to oral evidence.

Why?

- **The physical presence of the witness affords the judge the opportunity of observing the witness manner.** This is perceived as being a useful indication of a witness's truthfulness.

- The physical presence of the witness also gives the **accused the opportunity of confronting those who accuse him**. This is widely felt to be component of the right to a fair trial.
- Moreover, in oral testimony, **cross-examination** is regarded as an invaluable tool for laying bare the truth.
- Furthermore, testimonies are given on oath; the degree of being true is high.

Continental system lays emphasis on documents. Why?

- They believe that, documents do not lie and they are **easily manageable, and economical to bring them before the court of law**.
- Witness testimony, is based on the recollections of different people who witnessed the events with their own senses. Thus, **recollection is not always accurate, particularly if the witnessed event was over in a matter of seconds or was committed in circumstances of fear or excitement**.
- Moreover, if the witness's evidence is received many months after the incident, **there would be a risk of loss of memory over time**.
- **Risk Bias** on the part of the witness or the will to perjure them may result in the court receiving evidence, which is misleading and untrue.
- Furthermore, it becomes difficult to get reliable **witnesses if they died disappeared or become incompetent due to mental illness**.

1.4.1. Ethiopian law of evidence

- What system does the Ethiopian judicial system adhere to- the civil or common law?

It is very difficult to group Ethiopia in either of the legal systems by its laws of evidence. Ethiopia does not have a codified evidence law. On the other hand, it also does not follow the common law practice of trial by jury.

- **The Ethiopian criminal procedure and civil procedure codes follow the common law approach of litigation.** Sedler presents the more adversarial approach of the criminal procedure and guarantees of the criminal accused as evidence of Ethiopia's system of litigation tilting towards common law approach.
- **On the civil procedure side, the presence of pleading, stage preclusion, a separate trial as opposed to conferences and proof-taking, direct and cross-examination, and specific powers and limitations for the judge make the Ethiopian civil litigation**

more of a common law in its approach. In both proceedings the parties are responsible to presenting and proving their cases, an approach in line with the common law system.

- **The Civil Procedure Code makes exceptions to the adversarial and party presentation principles of the common law system through the degree of control of the court in the civil proceeding. More chance to parties to correct their mistakes through first hearing; the possibility for the court to ask for additional evidence even in the presence of admission; court framing issues without being limited to pleadings of the parties; liberal amendment of the pleadings and the broad powers of the court to examine parties' witnesses and to call additional witnesses are the major exceptions in the civil proceeding system.** These provisions are necessary, as Sedler states, because of the need to prevent grave consequences from procedural mistakes.

Enactment of the draft evidence code would consolidate the common law position of the Ethiopian evidence system. The Draft Evidence Rule 1967 followed the Indian evidence system, which in turn follows the common law evidential system.¹

Exercise

British experts were working as judges in Ethiopia soon after the resumption of power by the emperor after the Italian occupation. The civil and criminal procedure codes were influenced by the common law legal system. This led to the dominance of common law characteristics of the Ethiopian evidentiary rules.²

CHAPTER TWO: PROOF WITHOUT NEED TO ESTABLISH EVIDENCE

- Introduction

A person alleging some fact must bring evidence to prove that particular fact. This is the general principle of evidence law. However, there are some facts in which the court does not require the person asserting them to prove the same. These facts that do not need to be proved are the concern of the chapter.

The first exception applies where a party admits a fact by making a formal admission either before the trial or at the trial. The second exception applies where the proof of the fact in issue may be presumed by the court from an inference drawn from one or more primary facts. And the

¹Tatek Tadesse, Fundamentals of Evidence Law (Amharic) (2003EC), p29.

²Report of the drafting taskforce, (2012), p4.

third exception to the general rule is dealt under the doctrine of judicial notice. Judicial notice covers those facts that are so well known and notorious that it is not necessary for a party to prove that fact formally to the court.

2.1. Admission of facts

- **In the fact finding process, if a party accepts some of the facts alleged against him, there is no law requiring the trier of fact to hear additional evidence to prove the fact.** Such admission can be taken to prove the existence of the fact in a conclusive manner. For the admission to have such effect, **it must have been adduced before a trier of fact.**
- **Formal or judicial admission refers to admission made before a tribunal.**
- **It can be made as part of a proceeding, as in the statement of defense or by the parties before the tribunal.** It is this type of admission for which a court cannot be required to ask for proof. The admission can be taken as a full proof of the issue.
- On the other hand, informal or evidentiary or extra-judicial admission refers to admission made outside courts. If an informal admission of the existence of a fact is made by a party, such admission can be presented to the trier of fact by the opposite party. Whether it will be valid evidence, its admissibility and the weight to be attached to it are to be determined by pertinent laws. We must refer to the laws of relevance, admissibility and weight discussed in the next chapter to answer the questions.

The party who has admitted a fact outside a tribunal may not be able or willing to give that admission before the tribunal. Such outside-of-tribunal admission is presented by, probably, the opposite party. Hence, **such kind of admission is regarded as hearsay evidence and rules of hearsay must be applicable to it. For instance, if admission made by an accused before the police officer is produced as evidence by the prosecutor, it is hearsay.** Chapter 4 will discuss the admissibility of hearsay. Therefore, informal admission is not the admission which is the discussion of this section.

In the preceding chapter, the reasons for stricter rules of evidence in criminal cases than in civil cases were discussed. One of the manifestations of such strictness is the rule on judicial admissions. This can be expressed in two ways. First, there is wide scope of admissions in civil cases than criminal cases. One example is the status of silence in the proceedings- while it is

taken as admission in civil, it is not admission in criminal proceeding. Second, even when there is admission, the tribunal in criminal cases may order additional evidence.

To clearly understand the status of admissions in both civil and criminal case, we must classify the admissions in civil and criminal cases.

JUDICIAL/ FORMAL ADMISSIONS

I. Admission in civil cases

- The need for evidence arises when there is a dispute between the plaintiff and defendant on certain fact. **Art 247 of the Civil Procedure Code defines an issue as a material proposition which is affirmed by one party and denied by the other.**
- According to the above provision, a **fact will be an issue only if it is alleged by the plaintiff and denied by the defendant. So, admission by defendant makes a fact not to be an issue.**
- **Admission as conclusive evidence of the existence or non-existence of a fact is applied when the admitting party makes it before the trier of fact, be it a court, a commissioner or jury.**
- An admission is said to have been made before the trier of fact in civil cases when it is made in the following cases.

i. Admission by pleadings

- **Art 248 of the Civil Procedure Code** indicates pleading as one source of framing issues. In fact, civil proceeding starts with written pleading from the parties. Hence, affirmations and denials are to be made in the pleadings. A party can also, directly or indirectly, admit a fact alleged by the other.
- This type of admission is made **on the statement of defense or a reply to a counterclaim.** The statement of defense is a written document submitted to a court that specifies the response to the statement of claim filed by a plaintiff; and the reply is a written document submitted to a court that specifies the response to the counterclaim filed by a defendant.

Admission in this circumstance can apply on the following matters:

Clear Admission

- In this case the defendant expressly admits some facts stated by the plaintiff in the statement of claim.
- **I.e. Art 247(1)** of the Civil Procedure Code states “*issues arise when a material proposition of fact or of law is affirmed by one party and denied by the other.*”

Failure to properly deny and evasive denial

- **If defendant fails to deny some facts alleged by the plaintiff, it can amount to acceptance** of such facts. Art 83 of the Civil Procedure Code states in this regard:

Art83: Denial to be specific

It shall not be sufficient for a defendant in his statement of defense to deny generally the grounds alleged by the statement of claim or for a plaintiff in his reply to a counterclaim *to deny generally the grounds* alleged by the defendant and each part shall deal specifically with each allegation of fact of which he does not admit the truth *except damages*.

Silence, therefore, means admission in civil cases and this admission found from the pleading is conclusive proof against the party who failed to deny facts asserted by the other party. Though Art 83 accepts non-denial as admission, it does not apply to compensation claims; in the latter case, court must hear evidence even though defendant did not appear. The FSC CD has passed a binding decision on this issue: Mulsa Beyecha v Debele Beyecha, Sene 14, 2002, Volume 9, FN48632, page 348.

የፌ/ብ/ሥ/ሥ/ሔግ ዴንጋጌ ቁጥር 235(2) የሚጥራው በግሌፅ ያልተካዱ ፌሬ ነገር እንዲታመን ይቆጠራል የሚሉ ሲሆን ይህ ተጽዕኖአዊ ተከላኸቻ ቀርቦ ከርከሩን ባሰማ ጊዜ ነው። ከዚህም ላሊ በፌ/ብ/ሥ/ሥ/ሔግ ቁጥር 83 እንዲታመን የሚቀጥለው በመርህ ተረጋጅ በተከላኸቻ በግሌፅ ያልተካዱ ፌሬ ነገር እንዲታመን የሚቆጠር ቢሆንም የካሳ ጥያቄ ሊይ ግን ይህ ግምት ተጽዕኖ ለሆነ እንዲታመን አይችልም ነው። ስህተትም በተያዘው ጉዳይ አመለካከት ቀርቦ ያልተከራከረ ቢሆንም የዲኝነት ጥያቄው የካሳ ጥያቄ እንዲታመን መጠን ቀርቦ እንኳ ቢከራከር ፊ/ቤቱ በማስረጃ ጉዳዩን ማጣራት እንዲሆንበት አመለካከት ነው። ከዚህ አንፃር የሥር ፊ/ቤት ተጠሪ እንዲከራከር ያላውን ማስረጃ ሰምቶ መወሰን ሲገባው ተከላኸቻ ቀርቦ አልተከራከረም ወይም አልካድም በሚሉ ብቻ ውሳኔ መስጠቱ ከተጠየቀው የዲኝነት ጥያቄ እና ከሥነ ሥርዓት ሔጉ የሙግት አመራር መርህ አኳያ ጉዴሆኑ ያላሆነት ሆኖ አግኝተዋል። ስህተትም ይህ መሠረታዊ የሔግ ስህተት ስህተት ለታረም ይገባል ብሎታል።

- The other case of admission by pleadings concerns Art 235 of Civil Procedure Code.

Art 235: Evasive Denial

(1) Where a defendant denies an allegation of fact in the statement of claim, *he shall not do so evasively*, but answer the point of substance and if an allegation is made with diverse circumstances, it shall not be sufficient to deny it along with those circumstances.

- (2) Every allegation of fact in the statement of claim, if not denied specifically or by necessary implication, or stated to be not admitted in the statement of defense, shall be taken to be admitted except as against a person under disability: provided that the *court may in its discretion require any fact so admitted to be proved otherwise than by such admission.*
- **Whenever there is evasive denial it may not be clear to what the denial is directed to and in this circumstance, the court may reject the general denial and consider them to be admitted.** Thus, at trial, the plaintiff will not be required to introduce evidence to prove the allegations. However, this does not prevent the court from ordering the proof of a fact evasively denied
- ii. **Admission in examination of parties- Arts124, 128, 241, 242, 243 CPC**
- **The pretrial stage of a civil proceeding is conducted to examine both parties of a case. As part of the stage, examination of parties is conducted to clarify the points that were raised in the pleadings.**
 - Evidence will not be produced at this stage except for some cases that can be settled without the need to conduct a full scale trial. Both pleadings are read to the parties and they will have to say something on it.
 - **If during the proceeding, one of them accepts a certain fact alleged by the opposite party, the fact will be taken as established against the person admitting.** The court will not require evidence to prove such admitted fact.

iii. **Admission by agreement- Art 252 CPC (parties not at issue)**

- one party may agree to do what the other demands or admit a particular issue in the case.
- When this agreement is submitted to the court **and after the court checks the fulfillment of essential conditions of the agreement (like consent, capacity, etc),** it will ratify the agreement and the fact agreed will be taken as a fact admitted. This can also be governed by Arts 3312 and 3324 of the Civil Code, without the authorisation of the court.

iv. **Admission by testimony-261(2)**

After the case is brought before the trial, the parties will have a chance to say something about the case.

- The parties **can even be witnesses in their own case and will be bound by every particular rule that relate to witnesses including being subject to cross-examination.**

If at the time of testimony, the parties admit some of the facts as true, it will be taken as admitted facts and, hence, no need for proof.

Exercise

- **What happens to admission by an indispensable party?**

II. Admissions in Criminal Cases

When a charge is read to an accused, he will be asked to say something about it. If he says nothing or admits it with some reservation, it will be recorded as a plea of not guilty. The only case in which plea of guilty is recorded is when the accused accepts all the ingredients of the offence stated in the charge as true. In the latter case, the court must make sure that the accused has the competence (mental capacity) to plead guilty and the confession given was free of confusion, misunderstanding and undue influence.

Art 134 of the Criminal Procedure Code: Plea of Guilty

- 1) Where the accused admits without reservation every ingredient in the offence charged, the court shall enter a plea of guilty and *may* forthwith convict the accused.
- 2) Where a plea of guilty has been entered, the court *may* require the prosecution to call such evidence for the prosecution as it considers necessary and may permit the accused to call the evidence.

Once plea of guilty is entered, the court can act in two different ways. It can accept the confession and convict the accused forthwith. In that case, the conviction is not subject to appeal (Art 185(1) of CrPC).

However, if the court is suspicious of the confession, it can order the public prosecutor to produce additional evidence to prove his case. Sometimes, accused persons may confess to a crime they have not committed. The reasons for false judicial admissions can be to mislead justice, to hide the real criminal, to acquire material benefits, to free themselves from some duties, to prove some rumours wrong (for example, if someone was suspected a homosexual, can admit sexual crimes), to get social acceptance, etc.

Also in those systems that follow plea bargaining, some innocent accused persons take the deals especially when the punishments they will suffer are reduced sentences or probation.

Issues to ponder

- Tatek states that there is jurisprudence showing Ethiopian courts ordering production of evidence in homicide cases.³ This of course is seen in contrast to the findings of some researches that indicate that false admissions are more common for less serious crimes with less severe consequences. Studies in US indicate that false admissions are more common in property and drug crimes than violent crimes.

Comment

- Can confession given to the court be withdrawn at later stages in the trial court? In England, it can be withdrawn with the leave of the court particularly when the defendant benefitted from a lawyer. Judges would not allow withdrawal if a person was supported by a lawyer unless defendant proves that the confession was given by misunderstanding or mistake.⁴ However, the court has full discretion to allow the accused to withdraw his plea of guilty at any time before sentencing.

What about in Ethiopia?

- In England, only the accused can enter plea of guilty.⁵ Can the legal representative of the accused enter plea of guilty in Ethiopia? (Refer to the criminal procedure code that discusses trial in absentia)

2.2. Presumptions

- **Presumptions are assumptions of facts taken by a trier of fact.** Presumptions can be **made by the law (presumption of law) or be made by the judge (presumption of fact or permissive presumptions).** The law may presume certain facts to exist when some others are proved. For such cases the judge must take judicial notice because they are part of laws. When there is no law obliging a trier of fact to take judicial notice, he can presume a certain fact after hearing some others. **This is called permissive presumption because the trier of fact has an option to either presume or not.** He does this based on

³Tatek Tadesse, Fundamentals of Evidence Law (Amharic) (2003EC), p50.

⁴Raymond Emson, Evidence (4th ed.) Palgrave Macmillan (2008), p421 citing R v Kolton [2000] Crim LR 761 (CA).

⁵Raymond Emson, Evidence (4th ed.) Palgrave Macmillan (2008), p421 citing R v. Ellis (1973) 57 Cr App R 571 (CA).

logical inferences. **The presumption of the law is, on the other hand, a mandatory presumption because the trier of fact is obliged, by law, to make the presumption.**

2.2.1 Presumptions of fact / permissive presumptions

- This presumption is an **inference** to be taken by a trier of fact **based on logic, experience and common sense**. It can be based on the idea of regularity (some things are regular), common course of natural events or common course of business, continuance, habit, etc.

*‘Presumption of fact is no more than an example of commonly occurring circumstantial evidence from which a common-sense inference has been drawn in the past and might be drawn again for the same reason’.*⁶ The trier of fact does it (inferring something unproved from something proved) all the time when it does the fact finding process. Hence, permissive presumption gives the court the discretion to presume the existence of a presumed fact when a basic fact is proved.

For instance, when Art 22 of the Civil Code states in the following way,

Art 22: Medical Examination

Where a person refuses to submit himself to medical examination not involving any serious danger for the human body the court may consider as established the facts which the examination had the object of ascertaining.

it is allowing the court to presume something from refusal of medical examination. Without this provision, the court would not, arguably, be allowed to take the inference.

2.2.2 Presumptions of law

- Presumptions **are logical inferences from a given fact or group of facts.**
- So, when there **are two facts logically connected** and a **party proves one fact (the primary/basic fact) the second fact (the presumed fact) will also be taken to have been proved, unless there is contrary evidence and production of that contrary evidence is allowed.**
- There are different justifications for applying the concept of presumption:

A. Natural Presumptions

- There are some facts which are natural consequence of another fact and **in the normal course of events the second fact flows from the preceding first fact.**

⁶Raymond Emson, Evidence (4th ed.) Palgrave Macmillan (2008), p406.

- **If the first or primary fact is proved to exist, it can safely be concluded that the second fact does really exist.** For example, in **presumption of paternity**, the family law presumes a child has as a father the husband of the mother. It is natural that if the husband and wife live together, they will consummate the marriage and the law presumes that the father of a child is the husband of his mother.

B. The theory of reason of probability: (Deductively sound argument/ strong inductive argument) in some cases the second fact will most probably exist upon the proof of the first fact

- **Article 1193: corporeal chattel**

- 1) Whosoever is in possession of corporeal chattel shall be deemed to possess it on his behalf and to be the owner thereof.
- 2) Whosoever disputes such ownership shall have to show that the presumption laid down in sub art (1) is not justified in the circumstances

C. Social Policy

- The law also takes other social policy considerations while presuming facts in favor of one party.
- **Article 22: Medical Examination**

Where a person refuses to submit himself to medical examination not involving any serious danger for the human body the court may consider as established the facts which the examination had the object of ascertaining.

D. Procedural Convenience

- Speedy and smooth trial is envisaged in all types of litigations. But some facts may cause the delay in the litigation process and the law tries to create convenience in the proceedings by presuming certain facts where proof of the opposite is easier than the proof of the presumed fact.

Article 196: proof of disability

1. Capacity is presumed
2. Any person who alleges the disability of a physical person shall prove such is under disability.

Types of legal presumptions

1. Irrebuttable presumption

- Is an inference which the court is compelled to make upon proof of the basic fact or group of facts notwithstanding any evidence to the contrary.

Draft Evidence Rules: Rule 5(3) provides:

When one fact is declared by these rules or any law to be conclusive proof of another, the court shall, on proof of the one fact, regard the fact as proved and *shall not allow evidence to be given for the purpose of disproving it.*

- **Article 3: date of conception**

1. A child shall be deemed to have been conceived on the three hundredth day which precedes his birth.

2. *No proof shall be admitted against this presumption.*

- It is argued that conclusive (**irrebuttable**) presumptions are not really presumptions at all but simply compulsory rules of law.
- This is why it is argued that this presumption is **not part of evidence law, rather a substantive rule, as evidence cannot be produced to rebut them.** When the law as a matter of some policy wants to make assumptions definite and unchangeable, it writes them in a way which makes no reference to words used in presumptions.
- The Ethiopian legal system made a definite assumption that persons who have attained 18 years of age are regarded as capable of entering into juridical acts. Also that, persons under the age of 18 are unable to give consent to sexual intercourse, making such sexual intercourse a crime. These rules are stated as substantive laws, not presumptions. Some others indicate the word ‘presumption’ (such as presumption of innocence) but cannot strictly fall under the concept of presumption.

3. Rebuttable presumption

- The presumption can be contradicted by producing evidence. Contrary proof is acceptable by the court to rebut these types of presumptions.
- These are regarded as the **real evidentiary presumptions because the presumption has itself become evidence that benefits one party.**

- **Rebuttable presumption can be of two types differing on how rebuttal is to be made.**
- The first type of rebuttable presumption is called **freely rebuttable presumption**.
- This gives the other party to produce any evidence that can rebut the presumption. In this case, the party is free to produce evidence for the rebuttability of the presumption made in favor of the other party.
- Art 13 of Procl. No. 668/2010: Effect of Non-Registration of Assets

Any asset of an appointee, an elected person or a public servant not registered in accordance with this Proclamation shall, in the absence of proof to the contrary, be considered as an unexplained property for the purpose of applying the provisions of Article 419(2) of the Criminal Code.

- Article 1147 of the Civil Code: Transfer of title
 - 1) *Unless the contrary is proved*, he who began to possess on behalf of another person shall be regarded as a mere holder.
 - 2) Proof to the contrary may be adduced by *any means*.
 - 3) It shall not result from a mere change in the intention of the holder.
- The second type of rebuttable presumption is **proof rebuttable presumption**.
- In this case only limited types of evidence, usually provided by the next sub article or the next article, can be produced to contradict this type of presumption.
- For example, Art 1195 of the Civil Code lays down the presumption and the next article provides for the types of proof or manner of contradicting the presumption.

Article 1195: 2-title deeds

The issue by the administrative authorities of a title deed to the effect that a given immovable belongs to a given person *shall raise a presumption* that such person is the owner of such immovable.

Article 1196: proof to the contrary

The presumption lay down in Art. 1195 shall be rebutted where:

- b) the title deed was not issued in accordance with the law or was issued by an authority having no jurisdiction; or
- c) the title deed was issued on the basis of invalid act; or

d) the plaintiff acquired the ownership of the immovable after the day on which the title deed was issued.

Issues to ponder

File Number 29181, Vol 10, p118

In the absence of the defendant, lower courts decided that payments which are due more than two years are deemed to be paid (Art 2024) and declined the claims of the plaintiff

Issue: does presumption under 2024 apply even if the defendant failed to appear or did not deny?

Read the decision of the court (including the dissenting opinion) and then read the following excerpt by Worku and discuss the issue

Worku Yaze, Operation and Effect of Presumption in Civil Proceedings: An Inquiry into the Interpretation of Art 2024 of the Ethiopian Civil Code, 4(2) *Mizan Law Review*, 258-296 (2010)

A careful reading of the majority and the minority opinions of the court evokes the following questions: 'What are presumptions?' 'Are they items of evidence?' How does a given presumption of law come into operation in a given proceeding? How is such operation related to burdens of pleading and proof? What legal consequence(s) follow from an operation of a given presumption of law? Does the operation of any presumption of law in a given case require courts to follow special rules of evidence and procedure to resolve a dispute in litigation? These and related issues, of course, were the core themes in the case mentioned above.

Other subsequent cases bearing similar allegations of non-payment of matured debts falling under Art 2024 of the Civil Code have triggered the same issues. These cases were resolved in accordance with the majority's interpretation of Art 2024 of the Civil Code in the Agency for the Administration of Rented Houses v. Bironi Atikpo case. A minor deviation was shown only last year in Commercial Bank of Ethiopia v Liyew Chekol & Million Mengistu (file number 29181, vol 10) wherein seven sitting judges unanimously observed that the type of presumption under Art 2024 of the Civil Code is a restrictively rebuttable presumption.

The judicial interpretation in the cases mentioned above and other cases (both in lower and appellate courts) and the academic debate that ensued demonstrate the difficulties in establishing a proper link between presumptions of law and burdens of proof on the one hand, and burdens of pleading, burdens of proof and presumptions of law, on the other. It is also clear that there is ambiguity in grasping the true nature of presumptions, in identifying the mode of operations and legal effects of the various presumptions. The Cassation cases mentioned above substantiate this fact.

As can be understood from the discussion above, a presumption is neither a fact nor evidence. We know that fact, unlike presumption, refers to an occurrence or event or state of affair which is perceptible through our sense organs. We also know that in the strict legal parlance evidence refers to that thing or circumstance or data that establishes or proves the existence or otherwise, the falsity or truthfulness of a fact under inquiry. It refers to one of the means of proof. It consists of oral, documentary and real evidence. But presumption is a different thing. It is not a kind of oral or documentary or real evidence. It may, however, be treated as one other mechanism of proving of facts under inquiry like evidence, formal admissions, or judicial notice – without being confused with any of the latter. To this end, McBaine stresses that it is wrong to treat presumptions as evidence or as something that is equivalent to evidence.

Moreover, presumption is neither argument nor an item of evidence. Argument refers to the persuasive propositions of material facts, issues, laws, analysis, reasoning, conclusion and relief submitted by litigating parties while presumption is not. An item of evidence pertains to probative material which consists of oral testimony of witnesses or contents of documents (including electronic and digital data,) or appearance or state of conditions of physical objects while presumption is entirely a different thing. Belton and many others conclude that presumption is not even a substitute for evidence; it is a rule of law or a legal mechanism that operates to affect the evidential and persuasive burdens of litigating parties one way or the other.

As most scholars including Morgan, Laughlin, McBaine, and Belton (cited above) correctly stated, the true presumptions are rebuttable presumptions of law. And rebuttable presumptions

of law are neither evidence nor substitutes for evidence. Rather, they are rules of law that require judges to draw conclusions about the truthfulness or falsity or the existence or otherwise of facts based upon other proven facts unless the adversely affected parties disprove the conclusions with evidence of any admissible kind.

Presumptions without basic facts are said to be presumptions that arise without proof of any particular fact. In such cases we do not have preliminary (basic) facts and presumed facts to be drawn or inferred from basic facts. The law simply says that something shall be presumed until the contrary is proved. No precondition is set for the operation of such so-called presumptions. Truly speaking, such presumptions without basic facts are rules of substantive law that allocate or fix the place of burden of proving or legal burden of proof. It is regrettable that such rules are described in terms of presumptions.

Presumptions with basic facts, on the other hand, are presumptions that arise after the initial establishment of some other basic fact. Such presumptions with basic facts only arise when some basic fact is first established. No presumed fact will come into the scene for judicial inquiry without such prior establishment of a basic fact. It is impossible for anyone to bring such a presumption into operation without securing that prerequisite. If W/ro A, for example, institutes a paternity case against Ato B alleging that the defendant is the father of Mamush who denies the existence of marital status and his paternity to the child, the court must draw the conclusion that Ato B is the father of Mamush by virtue of Art 126 of the Revised Federal Family Code if W/ro A can prove the existence of the marriage, and secondly if she can prove that the child was born or conceived during the marriage. The court arrives at this conclusion because plaintiff has proved two basic facts that compel drawing of the presumed controversial fact. The two basic facts are: that there was marriage between plaintiff and defendant, and that Mamush was born while the marriage was intact. The presumed fact that the court must draw is: that Ato B is the father of Mamush.

In the case of presumptions with basic facts, once certain basic facts are established or proved, other facts may or must be taken as proved in the absence of contrary evidence or must be taken as proved conclusively. According to Emson, presumptions that require initial proof of basic

facts are of three types: (i) presumptions of fact, (ii) irrebuttable presumptions of law, and (iii) rebuttable presumptions of law. For Dennis such presumptions can be subclassified into: (i) provisional presumptions or presumptions of fact, (ii) evidential presumptions, (iii) persuasive presumptions, and (iv) conclusive presumptions. There is no basic difference in these further classifications. They all are varieties of presumptions with basic facts; they all fall within that broad categorization of presumptions into presumptions of fact and presumptions of law. It is the latter that is further sub-classified into rebuttable and irrebuttable, or into evidential, persuasive and conclusive presumptions. The evidential and persuasive presumptions are subdivisions of rebuttable presumptions of law. And conclusive presumption is another expression for irrebuttable presumption.

Presumptions of fact also termed as provisional presumptions denote a conclusion which may be drawn from proof of the basic fact of the presumption, but the court is under no obligation to draw the conclusion, even in the absence of any rebutting evidence. For example if a person refuses to submit himself/herself to medical examination (that does not involve any danger) which a court needs to prove or disprove an allegation invoked in a statement of claim, the Court can, by virtue of Art 22 of the Ethiopian Civil Code, consider the fact Under inquiry as established. Courts may draw inference about certain facts from other proven facts or circumstantial evidence. Emson notes that "to say a presumption of fact has arisen is simply to state that as a matter of common sense it would be permissible to draw an inference from a proved or admitted basic fact."

Drawing of such common sense inference from other proven facts is within the discretion of courts. They are thus referred to as permissive presumptions or permissive inferences. Most legal writers label this process of drawing of a conclusion as inference rather than as presumption.

A presumption of law is what the law requires a court to make where certain facts are established. Such presumptions may be irrebuttable or rebuttable.

Irrebuttable presumptions of law (praesumptio juris et de jure) refer to conclusions that must be drawn by a court on proof of a basic fact. Here, once a basic fact is established, the court must draw a conclusion about the existence or non-existence, truthfulness or falsity of the presumed fact. And it is not open for any other party or for the court to rebut the presumed fact; i.e., no rebutting evidence is allowed to the contrary. Since no rebutting evidence is admissible at any rate, irrebuttable presumptions of law are referred to as conclusive or absolute presumptions. In a paternity case for example, if Ato D admits marriage but argues that the child was conceived after divorce without refuting W/ro C's evidence that the child was born on the 21⁰th day from the date of divorce, the court is bound to draw a conclusion that Mimi is conceived in wedlock. This is because Art 128(1) of the Federal Revised Family Code provides that a child shall be deemed to have been conceived in wedlock if she is born within 300 days after the dissolution of marriage. In this case it is not possible to adduce any evidence with a view to disprove the date of conception. Sub (2) of the article proclaims: "No proof to the contrary shall be admitted."

As many scholars in this area observed, irrebuttable presumptions fall outside the scope of the law of evidence. Such presumptions are, properly speaking, parts of the substantive law. As Dwyer stated, "conclusive presumptions allow no proof which might contradict them. They thus provide an absolute basis for judgments in certain fact situations. Such presumptions are therefore more accurately matters of substantive law than of procedural or evidentiary law because of their definitely decisional nature." (Emphasis added).

Rebuttable presumptions of law are either persuasive presumptions or evidential presumptions. Persuasive presumptions of law denote a conclusion that must be drawn by a court on proof of the basic fact of the presumption unless and until the party disputing it disproves the conclusion. Here, if a proponent of a basic fact establishes this basic fact with admissible evidence or if the basic fact is admitted by the opponent or if the court can take judicial notice of the alleged basic fact, the court must draw the conclusion on the existence or otherwise, truthfulness or falsity of the presumed fact. And then, it is up to the party against whom that presumption is drawn to satisfactorily disprove that established basic fact with admissible evidence and to prevent the court from considering the presumed fact as established.

It is not sufficient for the party against whom this presumption is operating to introduce rebuttal evidence. To win on that issue, this party has to convincingly disprove the alleged basic fact with sufficient degree or quantum of proof. It is not sufficient to create balance of probability, or to put the fact at an equilibrium state of condition in a civil proceeding. This party has to prove with a preponderant degree of persuasion showing that his version is true. If it is a criminal proceeding relating to the elements of the crime under inquiry it is, of course, sufficient if the defendant brings or spreads some reasonable doubt against the prosecution's established basic fact.

Evidential rebuttable presumptions of law, on the other hand, signify a conclusion that must be drawn by a court upon proof of the basic fact of the presumption in the absence of any evidence to the contrary. As in persuasive rebuttable presumptions of law, evidential rebuttable presumptions of law first come into the picture in any lawsuit after the initial establishment of basic facts in the litigation process. It is such establishment of the basic fact(s) that activate or bring into operation this type of presumption.

Once such a presumption has come into the scene following the proof of the basic fact(s), it has its own legal consequence different from that of persuasive presumptions of law. That effect is to put the incidence of the evidential burden, i.e., burden of going forward with evidence, or simply, burden of adduction of evidence, on the party against whom that presumption applies. This simply pertains to the party that has to move to adduce or present admissible evidence under the pain of losing on that particular issue(s) if the case stops at that point. Of course, mere adduction of some evidence by the party against whom this presumption is operable is not sufficient: rather, it is necessary to adduce sufficient evidence that contradicts the existence of that presumed fact. Yet, this party, unlike the party that bears legal burden, is not expected to convince judges about the truthfulness of the fact under investigation on his side as compared to his opponent because bringing the minds of judges to the state of equilibrium is sufficient to win on the issue under inquiry. In short, evidential presumptions do not affect the incidence of legal burden of proof.

Whether a given rebuttable presumption of law is of a persuasive or evidential nature has to be checked from the express or implicit gist of the law. One has to check by asking the following two questions. (1) Which of the two opposing parties in the litigation risk losing on an issue of fact under inquiry, in the face of an operable rebuttable presumption of law, if the case stops at a given point? (2) Which of the two opposing parties in the litigation risks losing on an issue of fact under inquiry, in the face of an operable rebuttable presumption of law, if the cogency of evidence produced on both sides remain at equilibrium?

In the case of evidential presumptions of law, once a basic fact is established, the court is duty bound to draw a conclusion about the existence (or absence), the truthfulness (or falsity) of a disputed matter of fact in the absence of evidence to the contrary. This "shifts" 68 the burden of adduction of evidence from the party who bears the burden to the opposite party against whom that presumption is operating. As the court is legally required to give a decision on the basis of the presumption in the absence of evidence to the contrary, this party, therefore, bears the burden of adduction of sufficient evidence- evidence that is sufficient to raise doubt against the conclusion that should be drawn in its absence. This party's rebuttal evidence must be strong enough to justify a finding in his favor if the case stops at that point. If his evidence brings equal probability, or puts the matter in equilibrium at the end of the litigation process, or if the court is left in doubt at the conclusion of all the evidence, the party with the evidential burden wins on that issue. That is because the party in favor of whom the presumption is operating, i.e., the beneficiary of the presumption, still bears the burden of persuasion.

*In the case of persuasive presumptions of law, however, the court is duty bound to draw a conclusion about the existence or otherwise of the fact in dispute unless such conclusion is disproved **by** the other party disputing it. Such presumptions operate to place a legal burden on the party challenging the presumed fact. Here, unlike evidential presumptions, the legal burden of proof "shifts" from the beneficiary of the presumption to the party against whom that presumption is operable. Hence it is not sufficient for this latter party to adduce some evidence. It is necessary for this party to adduce evidence that convinces judges of the truth on his side with greater probability. Putting the matter at equilibrium will not be sufficient for this party.*

The Cassation Division, which consisted of a panel of five judges, examined the case in the absence of the respondent. The issue framed by the Cassation Division was "whether it is possible to apply the presumption contained in Art 2024 of the Civil Code in the circumstance where a defendant did not deny the alleged money debt or in the circumstance where the case is proceeded exparte."

In this writer's opinion, the majority in the Cassation Division and the judges in the lower courts should not have invoked Article 2024 and raised an affirmative defense of payment of money on their own.

As defendant did not raise any defense, there was no single fact in favour of defendant, which the court could have established. Defendant did not allege a fact that could be established/proved by drawing a conclusion from another alleged and known (that could be judicially noticed) or admitted or proved fact. There was no basic fact; and there was no presumed fact alleged by defendant that the court had to deduce from. As shown before, presumption of law envisages certain conditions. There are no ideal facts that exist in the vacuum. There had to be an asserted fact, the truthfulness or otherwise of which could be established by proving a related basic fact. In the case at hand, there was no fact, or circumstance that commands calling for and applying any presumption of law in favor of the defendant.

Art 89 of the Civil Procedure Code This provision does not stipulate about the exemption of a party's burden of pleading as such. It rather provides for an exception to the rules of pleading embodied in Articles 80 to 88 of the Civil Procedure Code. This pertains to the exception rule whereby a party to a lawsuit may be exempted under certain circumstances from pleading some facts in preparing his statement of claim or defense. The facts that may fall within this exception are those that the law presumes in favor of one, and those other facts that the other party to a dispute bears burden of proof. In such instances, the party that bears burden of pleading is not required, in principle, to plead specifically alleging such facts which the law presumes to exist in one's favor or which the law imposed the burden of proving on the opponent. Again, this exception will not be applicable if such fact is already specifically denied by the other party in his pleading. By providing the exceptional situations where parties may be exempted from burden

of pleading of some facts, the provision clearly states the need to allege other facts in pleadings. There hardly exists a principle of law or rule of positive law or case law that entirely relieves a party to a dispute from his burden of pleading on the assumption that a given rebuttable presumption of law will be applicable in the case.

As made clear in earlier sections of this Article, a given presumption of law, on the other hand, imposes burden of adduction of evidence or burden of persuasion or both on the other party provided that the beneficiary of the presumption proves certain other basic fact(s).

*The main focus of this article has been on cases of true presumptions of law, i.e., rebuttable presumptions of law. These presumptions clearly presuppose the establishment of basic facts before courts resort to drawing conclusions regarding the presumed facts. Such basic and presumed facts must be part of the allegations of the parties in dispute. It is the assertions of facts in the pleadings that provide the foundation for evidential and persuasive burdens. Mere allegations of facts may not force the coming into operation of such presumptions of law because proving of basic facts is indeed a requirement. Admission of such basic facts **by** an opponent may relieve the proponent from the burden of establishing the asserted basic fact. This is also true if the basic fact alleged is of a kind which courts may take judicial notice of. Otherwise, it is hardly possible to see the coming into operation of such presumptions.*

2.3 Judicial Notice

In principle, a party alleging the existence of a fact must present evidence to support his claim. The opposite party brings arguments and evidence to challenge the claims made by the party. A trier of fact in an adversarial system decides the matter by looking into the arguments and evidence produced by the opposing parties.

Moreover, the trier of the fact relies on what is presented by the parties and cannot use his personal knowledge in reaching a decision. There was a time in history, as seen in the previous chapter, where juries would decide based solely on their personal knowledge. The trier of fact might be influenced by his understanding and personal knowledge of a situation in weighing

evidence and passing a decision. However, the adversarial litigation does not allow a trier of a fact to base its decision on his personal knowledge. Doing so would violate the principle that *‘the parties should have a fair opportunity to address all the material considered by [the decision making body] when reaching its verdict’* (R. v. Karakaya [2005] EWCA Crim 346 para. 24).⁷

It is excepting these two principles that the concept of judicial notice is developed in evidence. When a fact is taken judicial notice on, a party who presented the fact would not be required to present evidence to prove it. The trier of the fact takes the fact as proved. *‘Judicial notice may be defined as a mechanism by means of which a court accepts a proposition as proved, without evidence to that effect having been formally adduced.’*⁸

There would be no reason to require evidence for a fact which is commonly known or which can be known with easy reference. It goes contrary to efficient use of the tribunal’s time. *‘Judicial notice is therefore aimed at streamlining the proceedings by eliminating fanciful disputes, while still ensuring that the decision is based on proven facts.’*⁹

There are three generally recognized matters of judicial notice. The fourth one is due to the special power given to FSC CD to pass binding decisions.

- i. Facts of common knowledge
- ii. Facts of public knowledge
- iii. Laws
- iv. Federal Supreme Court Cassation Decisions

i. Facts of common knowledge

Facts of common knowledge are facts generally known to be true by the people in the community where the court sits. It takes no excellence to know the fact that there is the day and there is the night. It is not a fact of judicial notice if only an individual (for e.g., the judge) or member of a group know the fact. The knowledge must be common in the community and any member is, in that case, presumed to know the fact.

⁷Raymond Emson, Evidence (4th ed.) Palgrave Macmillan (2008), p420.

⁸BSC Martin, Judicial notice of foreign law, 31(1) The Comparative and International Law Journal of Southern Africa, 61-77 (1998), p65.

⁹BSC Martin, Judicial notice of foreign law, 31(1) The Comparative and International Law Journal of Southern Africa, 61-77 (1998), p65.

A fact of common knowledge in one place may be a fact of public knowledge or even an ordinary fact in other places. A judge in Gurage is not expected to know the location of Mekelle University. Hence, a party alleging the fact can be required to prove it. For the determination of common knowledge, the fact must be commonly known in the area where the court accepting the fact has jurisdiction.

Exercise

What happens if a trier of fact does not know a fact which is regarded as common knowledge? Can he order production of evidence for its proof? Can he get the information outside of the tribunal?

The trier of fact shall ascertain fact which is of public knowledge. Facts of common knowledge are more notorious than facts of public knowledge. This shows us that the trier of fact can easily ascertain the fact of common knowledge and he should. So, in the above example, a trier of fact may come from another place and is handling his first case. This trier of fact may be unaware where a public school in the locality is located. He can ascertain the location using any of the means without the need to require evidence.

ii. Facts of public knowledge

These facts are not facts of common knowledge. However, these facts can easily be ascertained by referring books or other documents. The fact that Meskerem 17 is a public holiday may not be a common knowledge. Even the judge can be unaware of this fact. However, it is easy for the court to refer calendar and know the truth of the assertion. It does not need any evidence from the person alleging the fact.

In this case too, what makes judicial notice to be taken on a fact is its ascertainment as truth. The fact that is referred in the texts must be indisputably true. The court cannot, for example, take judicial notice of opinions of citizens. The truth of the opinions must be proved by the party alleging the opinion. After inquiry, the facts must be indisputable facts. In such cases, the court may also receive expert opinion evidence as part of its inquiry to reach the indisputable fact.¹⁰

Cases of geographical divisions and historical issues fall under this category. It is easy to reach undisputable fact, for example, on the fact of the duration of the flight of the Ethiopian from Addis Ababa to London.

¹⁰Raymond Emson, Evidence (4th ed.) Palgrave Macmillan (2008), p418.

iii. Judicial notice of laws

The triers of fact must base their decision on pertinent laws and it is they themselves who determine which laws to apply. There can be arguments on the application of laws and their interpretation but courts are expected to know and apply the law. So, is law part of a fact which needs to be proved? The answer is no.

Evidence is produced to prove or disprove matters of fact and not matters of law. Disputes relating to the law are to be solved by interpreting the law, not by producing evidence.¹¹

Art. 2(3) of Federal Negarit Gazeta Establishment Proclamation No. 3/1995:

All federal or regional legislative, executive and judicial organs as well as any natural or juridical person shall take judicial notice of laws published in the Federal Negarit Gazeta.

The courts are one of the entities that are to take judicial notice of laws published in the Federal Negarit Gazeta. This proclamation is federal law and obliges all organs in the country to take judicial notice of federal laws.

As state laws are also to be enacted in accordance with the FDRE Constitution and regional states and federal government has the duty to respect the laws of each other, it follows that organs must also take judicial notice of state laws.

It is a common sense that state judiciary must interpret state laws and must take judicial notice of such laws. On the other hand, the federal judiciary may rule based on state laws. This happens in cases of conflict of law issues. In applying the state laws, the federal judiciary is taking judicial notice of state laws. States also need to take notice of each other's laws when they apply different state's laws.

iv. Judicial notice of decisions of Federal Supreme Court Cassation Division (FSC CD)

¹¹JOPTC Module on Evidence, p12.

Another matter of judicial notice emanates from the Amendment Proclamation 454/2005. This proclamation was enacted to amend the Federal Court Establishment Proclamation No. 25/1996. The amendment proclamation under Art 2(4) established a precedent system in that the decisions of the FSC CD would be binding, as authoritative interpretations, on all Ethiopian courts (regional and federal).

- Do you remember the system of precedent?

This would mean that all courts would take judicial notice of the decisions of the FSC CD.

Issues to ponder

What part of the decision of the court is to take judicial notice on- the *ration decidendi* only or the *obiter dicta* too? Read the following excerpt and comment

Kalkidan Aberra, Precedent in the Ethiopian Legal System, 2(1) *Ethiopian Journal of Legal Education*, (January 2009), p34, 39

In common law legal systems, the court cannot go beyond the issues raised by the parties in giving its judgment; this part of the judgment is called ratio decidendi and is binding while decisions on facts before the judge but not covered by the argument is called obiter dicta and is not generally binding. Moreover, no case could be precedent if the court gave two or more reasons for it.

In principle, the court cannot go beyond the issues formulated by the parties to a case and if a party has conceded a point, a decision on that point is not binding. But sometimes the judge goes beyond the points raised in the pleadings, e.g., he suggests that he would have decided the case in the same way even if the facts had been somewhat different. In such circumstances, the part of the judgment that is unrelated to the facts before the judge and generally not covered by the arguments of the parties is not strictly binding. However, some scholars have thought that it is rather absurd for a later court to ignore a deliberate statement of law on a given set of facts if made by a judge or court of several judges after full discussion, even though it goes a little outside the facts argued on the case.

Another problem may arise where the court finds its legal ruling in its findings of fact, but states that it would be the same on different facts. For instance, if a counsel argues that his client should recover damages because he falls under a certain category, but she cannot recover

damages for some reason, irrespective of his category. The ruling that one cannot recover (p40) damages is one reason and the classification of the plaintiff is another. And it has been held that one cannot accept one reason and reject the other as a matter of personal choice, otherwise, no case will be precedent where the court gives two or more reasons for its judgment. (in these two paragraphs, she cited A.K.R. Kiralfy, The English Legal System, (London: Sweet and Maxwell, 8th ed, 1990, p77-78)

Issue to ponder

Based on the above reading, opine on the following issue:

Look into the case below and determine which is part of the *ratio decidendi* and which is part of *obiter dicta*

FSC CD, Vol. 15, FN78470: can a party who has won in civil case be punished in criminal case which required the same evidence? Art 2149- if convicted, conviction is relevant to the civil case- this is because standard required in criminal case is more stringent than civil cases (also stated under FN 46386; this indicates that the evidence which is not sufficient for civil cases cannot be sufficient for criminal cases; person freed from civil liability (FN 69179); the act in both cases is similar- conviction contradicts spirit of Art 141 of CrPC and a contrario reading of 2149; one judge differs on the reasoning though accepted the decision: differs on the interpretation of Art 2149; this article states that a person acquitted cannot be said to have no civil liability- it does not imply- 2149's a contrario reading shall not be applied due to its special nature and purpose; the prosecutor can present the evidence heard in civil case in a better way and refute evidence presented by the defendant; the mere fact of lack of civil liability does not amount to acquittal in criminal cases; in the particular case, the prosecutor did not prove his case, so, acquittal was proper; an evidence which was not competent in the civil case cannot be competent in criminal case.

4. Are lower courts also expected to take the interpretation on Art 2149 (application of criminal conviction on civil cases)?

FN 46386, Vol 13- court will have the duty to evaluate all relevant evidence; a contrario reading of Art 2149- criminal conviction is relevant to civil cases on same issue- the evidence presented

in both cases must be the same; however, the present case is not the same with the previous criminal case, hence, no obligation to take it as evidence

5. What point in this decision are the courts bound to take judicial notice on?

6. Judicial notice of foreign laws?

The common law regards foreign laws as facts.¹² Hence, when a party wants to benefit from a foreign law, he has to produce it to the trier of fact. He also has the obligation to persuade the court on what it means, i.e., its interpretation. Proof can only be made, however, by an expert who has adequate knowledge of the foreign law presented.¹³

What about in Ethiopia?

7. Judicial notice of decisions of foreign courts

There is no law or principle that imposes general obligation of triers of fact to take judicial notice of foreign laws or decisions of foreign tribunals. When the issue the trier of fact is entertaining is a matter of enforcement of decisions of foreign tribunals, Ethiopian tribunals may be required to recognize such decisions.

For instance Art 13 of Proc No. 657/2009:

A final judicial order or judgment that provides for the confiscation of property, connected to money laundering or the financing of terrorism, issued by a court or other competent authority of another country shall be recognized by Ethiopian court as evidence.

8. Judicial notice of international laws and international agreements?

Art 9(4) of the constitution makes international agreements ratified by Ethiopia part and parcel of the law of the land. Moreover, Art 13(2) makes international human rights instruments tools of interpretation in applying the human rights provisions of the constitution. Hence, such laws shall be noted by the Ethiopian courts in determining court cases.

¹²BSC Martin, Judicial notice of foreign law, 31(1) The Comparative and International Law Journal of Southern Africa, 61-77 (1998), p61.

¹³BSC Martin, Judicial notice of foreign law, 31(1) The Comparative and International Law Journal of Southern Africa, 61-77 (1998), p62.

For the other laws, there is no obligation on the courts to take judicial notice.

Read the excerpt below for more on judicial notice: